

FORMAL COMPLAINT TO THE INFORMATION REGULATOR (SOUTH AFRICA)

Systemic Non-Compliance with POPIA and PAIA by the Office of the Chief Justice

Complainant: Wilbur William Matthee
Respondent: Office of the Chief Justice (OCJ) / The Labour Court & High Court (Western Cape Division)
Date: 9 July 2026
Subject: Formal Complaint regarding Systemic Non-Compliance with POPIA and PAIA

1. Purpose of Submission

This complaint is lodged against the Office of the Chief Justice (OCJ) for systemic administrative failures that constitute a severe interference with the protection of personal information (POPIA) and the promotion of access to information (PAIA). The conduct of registry officials — spanning data breaches, system integrity failures, and suppression of judicial records — has created a functional obstruction of justice, denying a self-represented litigant access to accurate personal and procedural data.

2. Jurisdiction

The Information Regulator has exclusive jurisdiction to investigate:

- Unauthorised Processing & Disclosure (Sections 8, 9, 26, 74 of POPIA).
- Data Integrity & Quality Failures (Section 19 of POPIA).
- Denial of Access to Personal Records (Section 23 of POPIA and PAIA).
- Systemic Security Compromises (Section 22 of POPIA).

3. Summary of Systemic Breaches

#	Complaint	Responsible Official	Breach of Law	Core Incident
1	Unauthorised Disclosure	Registrar Tsakani Soundy	Sec 8, 9, 26, 74	Transmitted third-party medical/psychiatric records (Armstrong v City of Cape Town) to an unauthorised party on 10 April 2026.
2	Data Integrity Failure	Director Ruanne David	Sec 19, 22	“Ghost Notification” system generates false hearing dates. Formal admission of system defects on 22 June 2026, yet failure to remediate.
3	Suppression of Personal Records	Acting Chief Registrar N. Hanekom	Sec 23 / PAIA	Withholding of official audio recordings (personal data) requested since 26 March 2026, preventing verification of proceedings.
4	Procedural Gatekeeping	Registrar Farzaana Ismail	Sec 19 / PAIA	Manufacturing non-existent procedural requirements (e.g. “referral certificate”) to create contradictory official records and delay adjudication.

4. Urgent Relief Sought

- An urgent investigation into the OCJ's data handling and automated notification systems.
- A directive for preservation of evidence (digital audit trails, audio recordings).

-
- A remediation order requiring the OCJ to correct official indices and provide accurate data to the Complainant.
 - Protection from retaliation regarding the Complainant's constitutional obligations to report systemic failures to Parliament.

Formal Declaration in Lieu of Physical Commissioning

To: The Information Regulator (South Africa)

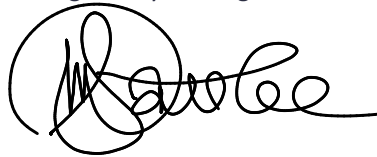
Regarding: Formal Complaint of Systemic Governance Failure

Date: 9 July 2026

I, the undersigned Wilbur William Matthee, do hereby declare as follows:

- The contents of this formal complaint and its accompanying annexures are true, correct, and within my personal knowledge.
- This document is electronically signed and authenticated in terms of Section 13 of the Electronic Communications and Transactions Act, 2002.
- I state under penalty of perjury that this file has not been physically printed or processed before a traditional Commissioner of Oaths due to absolute, severe financial impossibility and physical destitution.
- This destitution is not an organic state of affairs; it is the direct, intended consequence of the unlawful corporate retaliation, systemic UI-19 statutory fraud, and bad-faith litigation attrition documented inside this very complaint.
- The Respondents' ongoing blockade of my statutory safety nets has intentionally stripped me of the financial means to print legal paper or secure transport to a physical station for commissioning.
- To reject this digital, electronically signed submission on the basis of a lack of a physical ink stamp would be to permit the perpetrators of institutional fraud and administrative malfeasance to use the financial ruin they inflicted on a whistleblower as a shield against regulatory oversight.

Signed at Cape Town on this 9th day of July 2026.



Electronically Signed:

Wilbur William Matthee

Founder – EthicHawks Forensic Governance & Compliance Consultancy

Detailed Complaints

Complaint 1: Unauthorised Disclosure of Third-Party Special Personal Information (Registrar Tsakani Soundy)

Date of Incident: 10 April 2026 (09:32)

Responsible Official: Registrar Tsakani Soundy (TSoundy@judiciary.org.za)

The Incident:

On 10 April 2026, Registrar Soundy transmitted the complete, stamped court file of a third party — Daniel Armstrong v City of Cape Town (Case No: 2026-080903) — to me via email. The file contained:

- Full name and identity.
- Detailed medical diagnosis (Bipolar II Disorder, early vascular dementia).
- Psychiatric reports and employment disciplinary records.
- Confidential family circumstances.

Aggravating Factor:

On 5 May 2026, Registrar Soundy explicitly assumed manual control of my document uploading process (Case No: 2026-077546). By taking manual control, she accepted operational responsibility for the accuracy, integrity, and security of filings. This makes her simultaneous failure to secure the Armstrong records a direct breach of her duty of care.

Legal Breaches:

- Section 8 & 9: Processing and disclosing personal information without the data subject's consent and without a lawful purpose.
- Section 26: Failure to secure the confidentiality of sensitive (special) personal information.
- Section 74: Interference with the protection of personal information.

Impact:

This disclosure exposed a vulnerable third party (Mr Armstrong) to potential stigma and violated his right to privacy. It also demonstrates a systemic disregard for data security protocols within the registry.

Evidence: Email from Tsakani Soundy (10 April 2026); Attached Armstrong Statement of Claim.

Complaint 2: Systemic Data Integrity Failure – “Ghost Notification” System (Director Ruanne David)

Date of Incident: 18 June 2026 (Admitted by OCJ on 22 June 2026)

Responsible Official: Director Ruanne David (RDavid@judiciary.org.za)

The Incident:

On 18 June 2026 at 10:55, I received an official SMS notification from the OCJ confirming a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirmed that no such hearing exists in the official court record.

Official Admission:

On 22 June 2026 at 13:53, Director Ruanne David formally admitted:

“the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail.”

Legal Breaches:

- Section 19: Failure to maintain the integrity and accuracy of personal information. The automated system processes factually incorrect procedural data.
- Section 22: Failure to notify data subjects of a security compromise affecting their personal information.
- Section 74: Interference with the right to accurate data processing.

Failure to Remediate:

Despite formal acknowledgment of the system defects, the OCJ has taken no corrective action. The “ghost notification” persists, forcing me to constantly cross-verify official correspondence against physical records — creating an unjustifiable administrative burden and causing severe psychological strain. This fundamentally undermines the trust required for a litigant to participate effectively in court proceedings.

Evidence: *Screenshot of SMS (18 June 2026); Email from Director David (22 June 2026).*

Complaint 3: Denial of Access to Personal Records – Suppression of Audio Evidence (Acting Chief Registrar Nicola Hanekom)

Date of Incident: *Formal requests made 26 March 2026 & 03 June 2026 (deemed refusal as of current date).*

Responsible Official: *Acting Chief Registrar Nicola Hanekom (NHanekom@judiciary.org.za)*

The Incident:

I submitted formal, urgent requests for the official digital audio recordings of High Court proceedings in which I was a litigant (Case No: 2026-066952 and 2026-086906). These recordings contain my personal voice, testimony, and representations.

Official Response (or lack thereof):

Acting Chief Registrar Hanekom has acknowledged receipt of these requests (read receipts) but has failed to provide the recordings or even respond substantively. This constitutes a deemed refusal under PAIA.

Mischaracterisation Tactic:

When I followed up, the Registrar's office attempted to reclassify the correspondence as “Labour Court” communications — a demonstrably false assertion — to evade processing the request.

Legal Breaches:

- Section 23 of POPIA (read with PAIA): Failure to provide a data subject with access to their own personal information held by a responsible party.
- Section 74: Obstruction of access to personal information necessary to protect legal interests and prevent misrepresentation.

Impact:

The audio recordings are the sole objective evidence required to verify the mechanics of the 25 March 2026 hearing (where a punitive Scale C costs order was granted) and the misrepresentation to The Speaker of the National Assembly. Withholding this evidence prevents me from challenging that order and prevents accurate reporting to parliamentary oversight committees, thereby facilitating potential misrepresentation of proceedings to external constitutional bodies.

Evidence: *Audio Request email (26 March 2026 & 03 June 2026); Read receipts; Escalation correspondence.*

Complaint 4: Procedural Obstruction and Misrepresentation of Official Records (Registrar Farzaana Ismail)

Date of Incident: *Contradictory positions issued 12 May 2026 vs. 10 June 2026 (ongoing).*

Responsible Official: Registrar Farzaana Ismail (FIsmail@judiciary.org.za)

The Incident:

Registrar Ismail has created a contradictory and inaccurate official record regarding the status of my matter (Case No: 2026-077546):

- On 12 May 2026: The Registrar explicitly confirmed that my matter was on the registry “backlog” and awaiting allocation — confirming procedural compliance.
- On 10 June 2026: The Registrar radically pivoted, inventing a non-existent requirement for a “referral certificate” that was never previously required, thereby manufacturing a procedural barrier to adjudication.

Legal Breaches:

- Section 19: Processing and maintaining inaccurate, contradictory personal information. The official file now contains conflicting statuses that prejudice the Complainant.
- Section 23 / PAIA: Denial of access to an accurate, reliable official record, creating administrative uncertainty that prevents the monitoring of legal proceedings.
- Section 74: Interference with administrative due process by exceeding statutory authority to create arbitrary barriers.

Impact:

This shifting narrative is not indicative of administrative error; it constitutes a calculated gatekeeping tactic designed to delay adjudication. The Respondent has exceeded her administrative authority, undermined the principle of access to justice, and willfully obstructed the judicial process.

Evidence: *Correspondence Log (12 May & 10 June 2026); Formal Escalation (EH/JO/2026/003).*

Context of Protected Disclosures & Whistleblower Protection

The Complainant is a Specialist Nurse with 16 years of clinical governance experience and the Founder of EthicHawks Forensic Consultancy.

Pursuant to Section 8 of the Protected Disclosures Act (PDA), the Complainant has made protected disclosures regarding systemic regulatory failures, patient safety risks, and governance gaps affecting 1.9 million medical scheme beneficiaries and the National Health Insurance (NHI) architecture. These disclosures for submission to the Speaker of Parliament and relevant Portfolio Committees — a right expressly protected under Sections 55(2) and 56 of the Constitution.

The OCJ's refusal to release accurate records (audio recordings and accurate case statuses) directly hinders the Complainant's ability to verify factual assertions for these parliamentary submissions. This suppression of data exposes the Complainant to retaliatory litigation (specifically, contempt proceedings instituted by Afrocentric Investment Corporation), which seeks to characterise statutory parliamentary oversight as a breach of a High Court interdict now seeking my imprisonment.

The Complainant formally submits that:

- A court order cannot be weaponised to suppress protected disclosures made in the public interest.
- The Information Regulator is empowered to protect whistleblowers from victimisation arising from the reporting of systemic non-compliance.
- The failure of the OCJ to provide accurate data is directly facilitating this retaliation by depriving the Complainant of the evidentiary foundation required to defend his constitutional rights.

Prayer for Relief (Formal Remedy Sought)

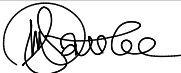
WHEREFORE, the Complainant respectfully requests that the Information Regulator:

- Initiate an Urgent Investigation into the OCJ's data handling, notification systems, and registry practices as outlined in this complaint.
- Issue a Preservation Directive ordering the OCJ to preserve all digital audit trails, electronic correspondence, and audio recordings related to Cases 2026-066952, 2026-086906, 2026-077546, and 2026-083299.
- Direct Immediate Remediation requiring the OCJ to provide the requested audio recordings within 5 working days; confirm in writing the correct, accurate status of Case No: 2026-077546; and rectify the “ghost notification” system to ensure data integrity.
- Facilitate Regulatory Mediation to clarify the OCJ's statutory obligations under POPIA/PAIA, ensuring that civil litigation is not used to silence the reporting of systemic governance failures.
- Exercise Protective Authority to shield the Complainant from retaliation arising from these protected disclosures, ensuring that the constitutional right to engage with Parliament is not unlawfully obstructed.

Certificate of Completeness

I, Wilbur William Matthee, declare that the information provided herein is, to the best of my knowledge, true and correct, and I attach the following supporting documents:

Annexure	Description
A1	Email from Registrar Soundy (10 April 2026) – Armstrong documents
A2	Armstrong v City of Cape Town Statement of Claim (revealing special personal data)
A3	Screenshot of “Ghost Notification” SMS (18 June 2026)
A4	Email from Director David admitting system failures (22 June 2026)
A5	Formal Escalation to Judge Presidents (EH/JO/2026/003 – 09 June 2026)
A6	EthicHawks Final Closure Report (23 June 2026)
A7	Notice of Administrative Default (01 July 2026)
A8	Audio Request emails to Acting Chief Registrar Hanekom (March–July 2026)
A9	Registrar Ismail’s contradictory correspondence (12 May & 10 June 2026)
A10	Screenshot of “Multiple emails per 1 portal upload”

Signature: 

Date: 9 July 2026

Place: Cape Town

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health
PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge

info@ethichawks.co.za | 069 635 1435